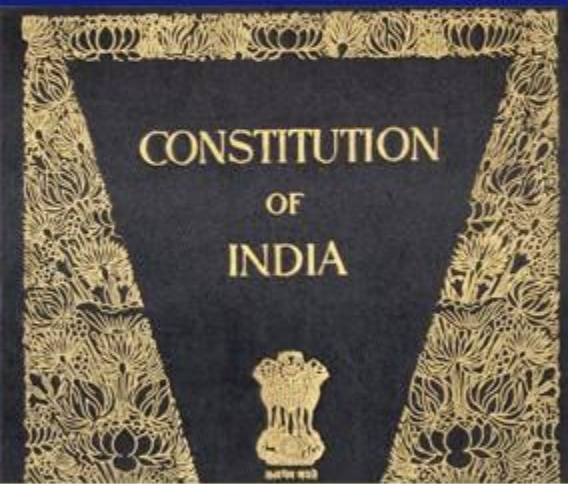


INDIAN POLITY



MODULE - 56

**THE PRESIDENT
PARDONING POWER**

INDIAN PRESIDENT

POWERS AND FUNCTIONS

Three important powers of the President which we shall deliberate in detail in the forthcoming modules are:

1. *Veto Power- Article 111*
2. *Ordinance Making Power- Article 123*
3. *Pardoning Power- Article 72*

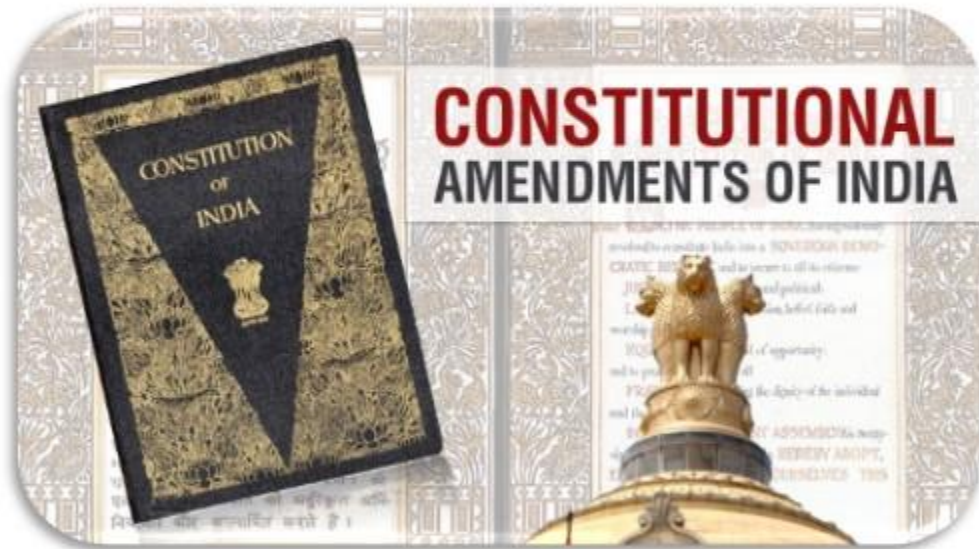


ORDINANCE-MAKING POWER OF
THE PRESIDENT

ORDINANCE

- 1 The President can also withdraw an ordinance at any time.
- 2 However, his power of ordinance-making is not a discretionary power, and he can promulgate or withdraw an ordinance **only on the advice of the council of ministers** headed by the prime minister.
- 3 An ordinance like any other legislation, can be **retrospective**, that is, it may come into force from a back date.

ORDINANCE-MAKING POWER OF THE PRESIDENT



- 4 It may modify or repeal any act of Parliament or another ordinance.
- 5 It can **alter or amend a tax law** also.
- 6 However, it cannot be issued to **amend the Constitution**.

ORDINANCE-MAKING POWER

WHY ORDINANCE WAS PLACED IN THE CONSTITUTION IN THE FIRST PLACE?



- 1 The ordinance-making power of the President in India is rather unusual and not found in most of the democratic Constitutions of the world.
- 2 In justification of the ordinance-making power of the President, Dr B R Ambedkar said in the Constituent Assembly that ***“the mechanism of issuing an ordinance has been devised in order to enable the Executive to deal with a situation that may suddenly and immediately arise when the Parliament is not in session”***.

ORDINANCE-MAKING POWER

ORDINANCES AND ARTICLE 352-
ANY RELATION?

- 1 It must be clarified here that the ordinance-making power of the President has no necessary connection with the national emergency envisaged in Article 352.



- 2 The President can issue an ordinance even when there is no war or external aggression or armed rebellion.
- 3 The rules of Lok Sabha require that whenever a bill seeking to replace an ordinance is introduced in the House, a statement explaining the circumstances that had necessitated immediate legislation by ordinance should also be placed before the House.

INDIAN PRESIDENT

ORDINANCE-MAKING POWER

ILL EFFECTS OF REPEATED PROMULGATION OF ORDINANCES

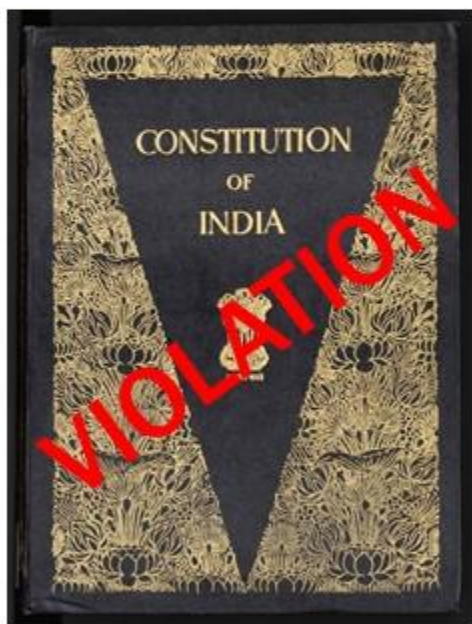


- 1 So far, no case has gone to the Supreme Court regarding repromulgation of ordinance by the President.
- 2 But, the judgement of the Supreme Court in the **D C Wadhwa case** (1987) is highly relevant here.
- 3 In that case, the court pointed out that between **1967-1981** the **Governor of Bihar** promulgated **256 ordinances** and all these were kept in force for periods ranging from one to fourteen years by repromulgation from time to time.

INDIAN PRESIDENT

ORDINANCE-MAKING POWER

ILL EFFECTS OF REPEATED PROMULGATION OF ORDINANCES



4 The court ruled that successive repromulgation of ordinances with the same text without any attempt to get the bills passed by the assembly would amount to violation of the Constitution and the ordinance so re-promulgated is liable to be struck down.

5 It held that the exceptional power of law-making through ordinance cannot be used as a substitute for the legislative power of the state legislature.

PARDONING POWER OF THE
PRESIDENT

PARDON
REPREIVE
RESPITE
COMMUTE
REMISSION

- 1 Article 72 of the Constitution empowers the President to grant pardons to persons who have been tried and convicted of any offence in all cases where the:
 1. Punishment or sentence is for an offence against a **Union Law**
 2. Punishment or sentence is by a **court martial** (military court)
 3. Sentence is a **sentence of death**.
- 2 The pardoning power of the President is **independent of the Judiciary**; it is an executive power.

PARDONING POWER OF THE PRESIDENT



- 3 But, the President while exercising this power, **does not sit as a court of appeal.**
- 4 The object of conferring this power on the President is two-fold:
 - a) To keep the **door open for correcting any judicial errors** in the operation of law
 - b) To **afford relief from a sentence**, which the President regards as unduly harsh.

INDIAN PRESIDENT

PARDONING POWER OF THE PRESIDENT

PARDON

- 5** It removes both the sentence and the conviction and **completely absolves the convict from all sentences**, punishments and disqualifications.



COMMUTATION

- 6** It denotes the **substitution of one form of punishment for a lighter form**.
Example : A death sentence may be commuted to rigorous imprisonment, which in turn may be commuted to a simple imprisonment.



INDIAN PRESIDENT

PARDONING POWER OF THE PRESIDENT

REMISSION

- 7** It implies **reducing the period of sentence without changing its character.**
Example : A sentence of rigorous imprisonment for two years may be remitted to rigorous imprisonment for one year.



RESPITE

- 8** It denotes awarding a lesser sentence in place of one originally awarded due to some special fact, such as the **physical disability of a convict or the pregnancy of a woman offender.**



INDIAN PRESIDENT

PARDONING POWER OF THE PRESIDENT



REPRIEVE

- 9 It implies a stay of the execution of a sentence (especially that of death) for a temporary period. Its purpose is to enable the convict to have time to seek pardon or commutation from the President.

INDIAN PRESIDENT

PARDONING POWER OF THE PRESIDENT

HOW IS THIS DIFFERENT FROM THE PARDONING POWER OF GOVERNOR?

PRESIDENT
vs
GOVERNOR

- 1 Under **Article 161** of the Constitution, the governor of a state also possesses the pardoning power.
- 2 Hence, the governor can also grant pardons, reprieves, respites and remissions of punishment or suspend, remit and commute the sentence of any person convicted of any offence against a state law.

INDIAN PRESIDENT

PARDONING POWER OF THE PRESIDENT

HOW IS THIS DIFFERENT FROM THE PARDONING POWER OF GOVERNOR?

- 3 But, the pardoning power of the governor differs from that of the President in following two respects:
- The President can pardon sentences inflicted by **court martial** (military courts) while the governor cannot.
 - The President **can pardon death sentence** while governor cannot. Even if a state law prescribes death sentence, the power to grant pardon lies with the President and not the governor.
 - However, the governor can suspend, remit or commute a death sentence. In other words, **both the governor and the President have concurrent power** in respect of suspension, remission and commutation of death sentence.

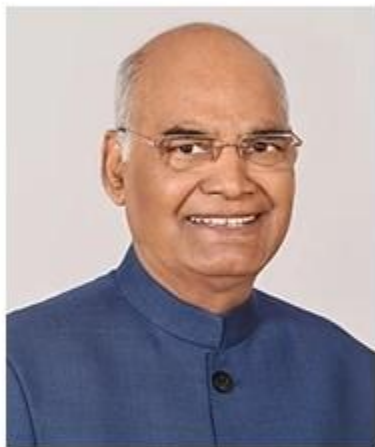
INDIAN PRESIDENT

PARDONING POWER

OBSERVATIONS OF THE SUPREME COURT OVER PRESIDENT'S PARDONING POWER

- 1 The petitioner for mercy has **no right to an oral hearing** by the President.
- 2 The President **can examine the evidence afresh and take a view different from the view taken by the court.**
- 3 The power is to be exercised by the President **on the advice of the Union Cabinet.** He is not bound to give reasons for his order.
- 4 The President can afford relief not only from a sentence that he regards as unduly harsh but also from an evident mistake.
- 5 There is **no need for the Supreme Court to lay down specific guidelines** for the exercise of power by the President.
- 6 The exercise of power by the President is **not subject to judicial review except where the presidential decision is arbitrary, irrational, mala fide or discriminatory.**
- 7 Where the earlier petition for mercy has been rejected by the President, **stay cannot be obtained by filing another petition.**

CONSTITUTIONAL POSITION OF THE PRESIDENT



- 1 The Constitution of India has provided for a parliamentary form of government.
- 2 Consequently, the President has been made **only a nominal executive**; the real executive being the council of ministers headed by the Prime Minister.
- 3 In other words, the President has to **exercise his powers and functions with the aid and advise of the council of ministers headed by the Prime Minister.**

CONSTITUTIONAL POSITION OF THE PRESIDENT

Dr B R Ambedkar summed up the true position of the President in the following way :

- 1 In the Indian Constitution, there is placed at the head of the Indian Union a functionary who is called the President of the Union.



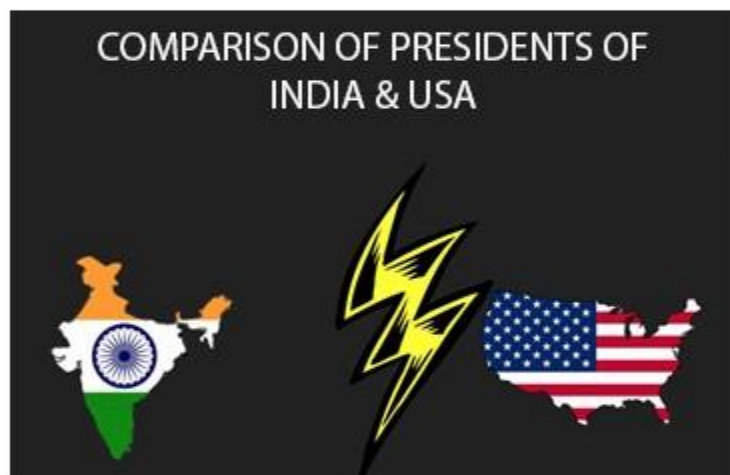
- 2 The title of the functionary reminds of the President of the United States.



“But beyond the identity of names, there is nothing in common”

CONSTITUTIONAL POSITION OF THE PRESIDENT

Dr B R Ambedkar summed up the true position of the President in the following way :



The American form of government is called the Presidential system of government and what the Indian Constitution adopted is the Parliamentary system.

- 3 Under the presidential system of America, the President is the Chief head of the executive and administration is vested in him.
- 4 Under the Indian Constitution, the President occupies the same position as the King under the English Constitution.
- 5 He is the head of the State but not of the Executive.
- 6 He represents the nation but does not rule the nation.

CONSTITUTIONAL POSITION OF THE PRESIDENT

Dr B R Ambedkar summed up the true position of the President in the following way :

- 7** His place in administration is that of **a ceremonial device or a seal** by which the nation's decisions are made known.



- 8** He is generally bound by the advice of his ministers.

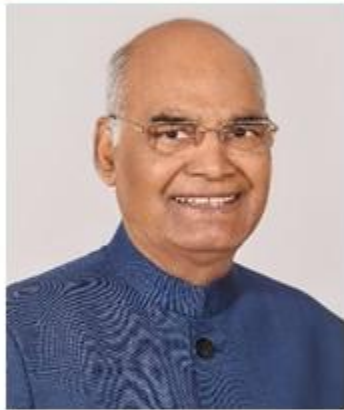
- 9** He can do nothing contrary to their advice nor can he do anything without their advice.

- 10** The President of the United States can dismiss any secretary at any time.

- 11** The President of the Indian Union has no power to do so, so long as his ministers command a majority in Parliament.

CONSTITUTIONAL POSITION OF THE PRESIDENT

In estimating the constitutional position of the President, particular reference has to be made to the provisions of Articles 53, 74 and 75. These are:



- 1 The **executive power of the Union shall be vested in President** and shall be exercised by him either directly or through officers subordinate to him in accordance with this Constitution (Article 53).
- 2 There shall be a council of ministers with the Prime Minister at the head **to aid and advise the President who 'shall', in the exercise of his functions, act in accordance with such advice** (Article 74).

CONSTITUTIONAL POSITION OF THE PRESIDENT

- 3** The council of ministers shall be collectively responsible to the Lok Sabha (Article 75). This provision is the foundation of the parliamentary system of government.

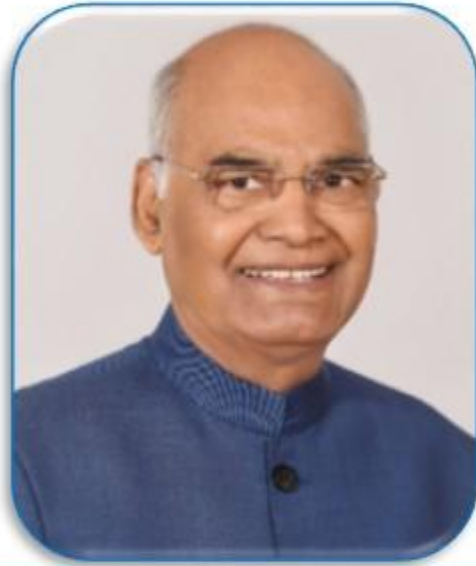


- 4** The 42nd Constitutional Amendment Act of 1976 (enacted by the Indira Gandhi Government) made the President bound by the advice of the council of ministers headed by the Prime Minister.

- 5** The 44th Constitutional Amendment Act of 1978 (enacted by the Janata Party Government headed by Morarji Desai) authorised the President to require the council of ministers to reconsider such advice either generally or otherwise.

INDIAN PRESIDENT

CONSTITUTIONAL POSITION OF THE PRESIDENT



- 6 However, he 'shall' act in accordance with the advice tendered after such reconsideration.
- 7 In other words, the President may return a matter once for reconsideration of his ministers, but the reconsidered advice shall be binding.

INDIAN PRESIDENT

CONSTITUTIONAL POSITION OF THE PRESIDENT

WHAT ABOUT THE SITUATIONAL DISCRETION OF THE PRESIDENT?

The President can act on his discretion (that is, without the advice of the ministers) under the following situations:



- 1 Appointment of Prime Minister when no party has a clear majority in the Lok Sabha or when the Prime Minister in office dies suddenly and there is no obvious successor.
- 2 Dismissal of the council of ministers when it cannot prove the confidence of the Lok Sabha.
- 3 Dissolution of the Lok Sabha if the council of ministers has lost its majority.

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